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U.S. Department of State Diplomacy in Action

Iran

Country Reports on Human Rights Practices
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The Islamic Republic of Iran¹ was established in 1979 after a populist revolution toppled the Pahlavi monarchy. The Constitution, ratified after the revolution by popular referendum, established a theocratic republic and declared as its purpose the establishment of institutions and a society based on Islamic principles and norms. The Government is dominated by Shi'a Muslim clergy. The Head of State, Ayatollah Ali Khamene'i, is the Supreme Leader of the Islamic Revolution and has direct control over the armed forces, the internal security forces, and the judiciary. Mohammad Khatami was elected to a second 4-year term as President in a popular vote in June, with 77 percent of the vote. A popularly elected 290-seat unicameral Islamic Consultative Assembly, or Majles, develops and passes legislation. Reformers and moderates won a landslide victory in the February 2000 Majles election, and constitute a majority of that body; however, the Council of Guardians and other elements within the Government blocked much of the early reform legislation passed by the Majles. A Council of Guardians reviews all legislation passed by the Majles for adherence to Islamic and constitutional principles. The Council consists of six clerical members, who are appointed by the Supreme Leader, and six lay jurists, who are appointed by the head of the judiciary and approved by the Majles. The Constitution provides the Council of Guardians the power to screen and disqualify candidates for elective offices based on an ill-defined set of requirements, including candidates' ideological beliefs. According to Human Rights Watch (HRW), the Council of Guardians rejected the candidacy of 145 out of the 356 candidates who filed to run for 17 seats in the special Majles election held concurrently with the Presidential election in June. This constituted a far higher percentage than were rejected in the February 2000 Majles elections. The judiciary is subject to government and religious influence.

Several agencies share responsibility for internal security, including the Ministry of Intelligence and Security, the Ministry of Interior, and the Revolutionary Guards, a military force that was established after the revolution. Paramilitary volunteer forces known as Basijis, and gangs of thugs known as the Ansar-e Hezbollah (Helpers of the Party of God), act as vigilantes, and intimidate and threaten physically demonstrators, journalists, and individuals suspected of counterrevolutionary activities. The Ansar-e Hezbollah often are aligned with particular members of the leadership. Both the regular and the paramilitary security forces committed numerous serious human rights abuses.

Iran has a mixed economy that is heavily dependent on export earnings from the country's extensive petroleum reserves. The country has a population of approximately 65,620,000. The Constitution mandates that all large-scale industry, including petroleum, minerals, banking, foreign exchange, insurance, power generation, communications, aviation, and road and rail transport, be publicly owned and administered by the State. Large charitable foundations called bonyads, most with strong connections to the Government, control the extensive properties and businesses expropriated from the Pahlavi family and

from other figures associated with the monarchy. The bonyads exercise considerable influence in the economy, but neither account publicly for revenue nor pay taxes. The Government subsidizes basic foodstuffs and energy costs heavily. Oil exports account for nearly 80 percent of foreign exchange earnings. Private property rights largely are respected. Although economic performance had improved somewhat when worldwide oil prices increased, the recent fall in prices has had an adverse effect. Government mismanagement and corruption also negatively affect economic performance. Unemployment is estimated to be between 25 and 30 percent, and inflation approximately 20-25 percent.

The Government's human rights record remained poor; although efforts within society to make the Government accountable for its human rights policies continued, serious problems remain. The Government significantly restricts citizens' right to change their government. Systematic abuses include summary executions, disappearances, widespread use of torture and other degrading treatment, reportedly including rape, severe punishments such as stoning and flogging, harsh prison conditions, arbitrary arrest and detention, and prolonged and incommunicado detention.

Judicial proceedings against some government officials for misconduct continued; however, perpetrators usually go unpunished. A group of 20 police officials was brought to trial in March 2000 for their actions in an attack on a Tehran University student dormitory in July 1999. However, according to the U. N. Special Representative for Iran of the Commission on Human Rights (UNSR), all but one were cleared of charges and released; the court sentenced one individual to 6 months in prison. In December 2000, 18 former officials of the Intelligence Ministry were tried before a military court in closed proceedings for the killings of four dissidents in 1998. On January 27, 15 were convicted. However, the Supreme Court reversed the convictions in August.

The influence of conservative government clerics, which pervades the judiciary, often prevents citizens from receiving due process or fair trials. The Government uses the judiciary to stifle dissent and obstruct progress on human rights. The Government infringes on citizens' privacy rights, and restricts freedom of speech, press, assembly, and association. Over the last 2 years, the Government has closed nearly all reform-oriented publications, and brought charges against prominent political figures and members of the clergy for expressing ideas viewed as contrary to the ruling orthodoxy. The Ministry of Culture and Islamic Guidance continued to issue licenses for the establishment of newspapers and magazines, some of which eventually challenged government policies, but those, too, were shut down.

The Government restricts freedom of religion. Religious minorities, particularly Baha'is--who are viewed not as a religious group, but as a heretical group and a subversive political organization--continued to suffer repression by conservative elements of the judiciary and security establishment. In July 2000, 10 Iranian Jews were tried and convicted on charges of having illegal contact with Israel, and sentenced to between 2 and 13 years in prison. Three others were acquitted. The trial procedures were unfair, and violated numerous internationally recognized standards of due process. Their appeal to the Supreme Court was rejected in January. One was released at the conclusion of his 2-year sentence in March, but the other nine remain in prison.

The Government controls the selection of candidates for elections. An intense political struggle continued during the year between a broad popular movement that favored greater liberalization in government policies, particularly in the area of human rights, and certain hard-line elements in the government and society, which view such reforms as a threat to the survival of the Islamic republic. In many cases, this struggle was played out within the Government itself, with reformists and hard-liners squaring off in divisive internal debates. During the year, reformist members of Parliament were harassed, and for the first time, prosecuted and jailed for statements made under cover of parliamentary immunity.

Khatami's June reelection does not appear to have resulted in meaningful reform. To the contrary, the repression of reformers, including parliamentarians, continued, and according to some reports, intensified.

The Government restricts the work of human rights groups and continues to deny entry to the UNSR. Violence against women occurs, and women face legal and societal discrimination. The Government discriminates against religious and ethnic minorities and severely restricts important workers' rights, including freedom of association and the right to organize and

bargain collectively. Child labor persists. Vigilante groups, with strong ties to certain members of the Government, enforce their interpretation of appropriate social behavior through intimidation and violence. There were reports of trafficking in persons.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

The Government has been responsible for numerous killings, and during the year reportedly there were executions that took place following trials in which there was a lack of due process.

There were anecdotal reports of security forces killing persons during the October "soccer riots." The Government acknowledged that it arrested hundreds of persons, but denies that anyone was killed.

Human rights groups reported that security forces killed at least 20 persons while violently suppressing demonstrations by Kurds that occurred in the wake of the February 1999 arrest of Kurdish Workers Party (PKK) leader Abdullah Ocalan in Turkey (see Sections 1.c., 2.b., and 5). HRW reported at least four student deaths in July 1999, when government-sanctioned agitators attacked a student dormitory during protests in Tehran (see Sections 1.c. and 2.b.).

Citizens continued to be tried and sentenced to death in the absence of sufficient procedural safeguards. In 1992 the domestic press stopped reporting most executions; however, executions continue in substantial numbers, according to U.N. and other reporting. The UNSR, based on media reports, cited an estimated 60 executions from January through July, down from 130 during the same period last year. The Government has not cooperated in providing the UNSR with a precise number of executions carried out. The UNSR reported that approximately two thirds of the executions took place in public, contrary to regulations, and that state television broadcasted scenes from hangings on at least two occasions during the year. He also noted that a woman was hanged publicly on March 19, a very rare event in the Islamic republic. Exiles and human rights monitors allege that many of those executed for criminal offenses, such as narcotics trafficking, actually are political dissidents. Supporters of outlawed political organizations, such as the Mujahedin-e Khalq organization, are believed to make up a large number of those executed each year.

A November 1995 law criminalized dissent and applied the death penalty to offenses such as "attempts against the security of the State, outrage against high-ranking Iranian officials, and insults against the memory of Imam Khomeini and against the Supreme Leader of the Islamic Republic." U.N. representatives, including the UNSR, and independent human rights organizations, continue to note the absence of procedural safeguards in criminal trials. Harsh punishments are carried out, including stoning and flogging (see Section 1.c.). The UNSR reported the stoning deaths of two women and the sentencing to death by stoning of at least one other during the year. He cited press reports of the May stoning death of an unnamed 35-year-old woman at Evin Prison in Tehran, who was arrested 8 years earlier on charges of appearing in pornographic films. He also reported that the Supreme Court upheld the sentence of death by public stoning of 38-year-old Maryam Ayoubi, who was convicted for the murder of her husband. Her sentence was carried out in Evin Prison in July. The UNSR reported that a third woman was sentenced in June to death by stoning for the murder of her husband. The law also allows for the relatives of murder victims to take part in the execution of the killer.

The Government's investigation into the killings of several prominent Iranian dissidents and intellectuals in late 1998 continued throughout the year. The case involved the killings, over a 2-month period from October to December 1998, of prominent political activists Darioush and Parvaneh Forouhar and writers Mohammad Mokhtari and Mohammad Pouandeh. Political activist Pirouz Davani disappeared in the same time period and has never been found (see Section 1.b.). In February 2000, after several senior figures of the leadership blamed the disappearances and killings on "foreign hands," it was revealed that active-duty agents of the Ministry of Intelligence had carried out the killings. Minister of Intelligence Qorban Ali Dori-Najafabadi and several of his senior deputies resigned their posts following these revelations. Supervision for the case

was placed in the hands of the Military Prosecutor's Office. In June 1999, the Prosecutor's Office released an initial report identifying a cell within the Ministry of Intelligence led by four "main agents" as responsible for the killings. The leader among the agents was reportedly a former Deputy Minister of Intelligence, Saeed Emami, who, the Government stated, had committed suicide in prison by drinking a toxic hair removal solution several days prior to the release of the Government's report. The report also indicated that 23 persons had been arrested in connection with the killings and that a further 33 were summoned for interrogation. In the early part of 2000, the Government announced that 18 men would stand trial in connection with the killings. The trial began in late December 2000 in a military court. The proceedings were closed. However, news reports indicated that 15 defendants pled guilty during the opening stages of the trial. The identity of the defendants still is unknown, but former Minister of Intelligence Dori-Najafabadi has not been charged. HRW reported that on January 27, a court convicted 15 out of the 18 defendants for the killings. Three were sentenced to death, five to life in prison, and seven to prison terms of between 21/2 to 10 years. However, HRW also reported that the trial did not clarify who actually ordered the murders. Several high-ranking figures were mentioned as possible suspects in the press, but they were not charged, and the trial did not produce any incriminating information regarding their involvement. According to HRW, during the summer, the Supreme Court reversed the convictions of the 15 Ministry of Intelligence officials. There was no decision by year's end regarding whether they would be forced to retire.

Frustration over the slow pace of the murder investigation and doubt about the Government's willingness to investigate the case more fully have been frequent topics of criticism of the Government, particularly by those advocating greater adherence to the rule of law. Reform-oriented journalists and prominent cultural figures publicly demanded a full accounting in the case and have speculated that responsibility for ordering the killings lay at the highest level of the Government. Several citizens, including prominent investigative journalist Akbar Ganji, were arrested in connection with statements they made about the case (see Sections 1.c. and 1.e.). In December 2000, just before Ganji's case went to trial, the Military Court arrested a lawyer for the family of one of the victims for violating a public ban on comments regarding the case.

The UNSR reported in August that the serial murders of late 1998 and early 1999 continued to cause controversy at what is perceived to be as the Government's cover-up of involvement of high-level officials in the affair. The UNSR also reported rumors suggesting that there were more than 80 murders or disappearances over a 10-year period as part of a wider campaign to silence dissent.

According to the National Spiritual Assembly of the Baha'is of the United States, since 1979 more than 200 Baha'is have been killed and 15 others have disappeared and are presumed dead.

One organization in 1999 reported eight deaths of evangelical Christians at the hands of the authorities in the previous 10 years (see Section 2.c.).

Numerous Sunni clerics have been killing in recent years, some allegedly by government agents (see Section 2.c.).

The Government announced in September 1998 that it would take no action to threaten the life of British author Salman Rushdie, or anyone associated with his work, *The Satanic Verses*, despite the issuance of a fatwa against Rushdie's life in 1989. The announcement came during discussions with the United Kingdom regarding the restoration of full diplomatic relations. Several revolutionary foundations and a number of Majles deputies within Iran repudiated the Government's pledge and emphasized the "irrevocability" of the fatwa, or religious ruling, by Ayatollah Khomeini in 1989, calling for Rushdie's murder. The 15 Khordad Foundation raised the bounty it earlier had established for the murder of Rushdie.

The Istanbul Court of Appeal upheld in 1998 the conviction of an Iranian national for complicity in the 1996 murders of Zahra Rajabi and Ali Moradi, both of whom were associated with the National Council of Resistance (NCR), an exile group that has claimed responsibility for several terrorist attacks within Iran. The UNSR reported in 1998 that Italian security authorities were continuing their investigation into the 1993 killing in Rome of Mohammad Hossein Naghdi, the NCR's representative in Italy.

b. Disappearance

No reliable information is available regarding the number of disappearances. In the period immediately following arrest, many detainees are held incommunicado and denied access to lawyers and family members.

According to Amnesty International, Siamak Pourzand, the manager of the Tehran Cultural Center, disappeared in Tehran on November 24, and is believed to be in government custody. His daughter claims that he had not been heard from by year's end. Pourzand is the husband of human rights lawyer Mehrangiz Kar, who still faces charges in connection with her participation in the April 2000 Berlin conference (see Section 1.e.).

Pirouz Davani, a political activist who disappeared in late 1998 along with several other prominent intellectuals and dissidents who were later found murdered, remains unaccounted for, and is believed to have been killed for his political beliefs and activism (see Section 1.a.).

According to the National Spiritual Assembly of the Baha'is of the United States, since 1979 more than 200 Baha'is have been killed and 15 have disappeared and are presumed dead.

A Christian group reported that between 15 and 23 Iranian Christians disappeared between November 1997 and November 1998 (see Section 2.c.). Those who disappeared were reportedly Muslim converts to Christianity whose baptisms had been discovered by the authorities. The group that reported the figure believes that most or all of those who disappeared were killed.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution forbids the use of torture; however, there were numerous credible reports that security forces and prison personnel continued to torture detainees and prisoners. Some prison facilities, including Tehran's Evin prison, are notorious for the cruel and prolonged acts of torture inflicted upon political opponents of the Government. Common methods include suspension for long periods in contorted positions, burning with cigarettes, sleep deprivation, and, most frequently, severe and repeated beatings with cables or other instruments on the back and on the soles of the feet. Prisoners also have reported beatings about the ears, inducing partial or complete deafness, and punching in the eyes, leading to partial or complete blindness. Stoning and flogging are prescribed expressly by the Islamic Penal Code as appropriate punishments for adultery (see Section 1.a.).

During the year, HRW reported that public floggings were "increasingly used for a wide range of social offenses, including breaches of the dress code, despite opposition from Interior Ministry officials who questioned the effectiveness of such punishments." For example, eight men convicted of drinking alcohol and causing public disturbance were flogged publicly in Tehran in July. Authorities flogged the men with 70 to 80 lashes.

HRW also reported that clashes between police and demonstrators broke out at public floggings and executions in Tehran in July and August when protesters demonstrated against these forms of punishment.

In November 2000, investigative journalist Akbar Ganji went on trial for statements he allegedly made during an April 2000 conference in Berlin regarding Iranian politics (see Sections 1.e. and 2.a.). He was arrested upon his return to the country and held over the next 6 months for long periods in solitary confinement. Ganji told the court that he was beaten and tortured in prison. Ganji previously had written articles implicating former President Rafsanjani in a series of murders of dissidents and intellectuals apparently carried out by security forces.

In March 2000, a gunman shot and severely wounded newspaper editor Saeed Hajarian, a senior political advisor to President Khatami. The methods used raised widespread suspicions that the security forces were involved in the attack. The gunman later was arrested and sentenced, along with four other defendants, to 15-year prison sentences.

On July 8, 1999, the Government and individuals acting with the consent of the authorities used excessive force in attacking a dormitory during student protests in Tehran, including reportedly throwing students from windows. Approximately 300 students were injured in the incident. The UNSR noted numerous credible reports that students arrested following the demonstration were tortured in prison (see Sections 1.a., 1.d., and 2.b.).

Prison conditions are harsh. Some prisoners are held in solitary confinement or denied adequate food or medical care in order to force confessions. Female prisoners reportedly have been raped or otherwise tortured while in detention. Prison guards reportedly intimidate family members of detainees and torture detainees in the presence of family members. In his 2000 report, the UNSR reported receiving numerous reports of prisoner overcrowding and unrest, and cited a reported figure of only 8.2 square feet (2.5 square meters) of space available for each prisoner. In his August report, the UNSR noted that the head of the National Prisons Organization (NPO) had told him that the prison population had risen 40 percent over the past year. The UNSR reported that much of the prisoner abuse was occurring in unofficial detention centers run by the secret service and military, among others. The UNSR further reported that according to the head of the NPO, the unofficial detention centers officially were brought under the control of the NPO during the year. In his latest report, the UNSR was unable to determine whether the change actually had taken place, and whether it had impacted the number of cases of prisoner abuse. HRW has reported that Prison 59 in Tehran, which is located in a Revolutionary Guard compound, is the only remaining prison that has not been brought under the jurisdiction of the NPO. Access to Prison 59 had been denied, including to Members of Parliament and the President's staff. During the year, the Iranian Human Rights Working Group reported that conditions for political prisoners have deteriorated. The group further noted that prisoner Reza Raiss-Toussi appeared physically ill and disoriented at his court hearing in March. He stated that prison officials keep him blindfolded at all times he is out of his cell.

According to HRW, in August a parliamentary group investigating abuses committed by state institutions produced a still-unreleased report that cites a large increase in the number of persons being imprisoned, more than two-thirds of them for drug-related offenses. It also noted that HIV/AIDS and other diseases were spreading rapidly throughout the prison population.

Other than the ICRC, the Government does not permit visits to imprisoned dissidents by human rights monitors.

d. Arbitrary Arrest, Detention, or Exile

The Constitution prohibits arbitrary arrest and detention; however, these practices remain common. There is reportedly no legal time limit for incommunicado detention, nor any judicial means to determine the legality of detention. Suspects may be held for questioning in jails or in local Revolutionary Guard offices.

The security forces often do not inform family members of a prisoner's welfare and location. Prisoners also may be denied visits by family members and legal counsel. In addition families of executed prisoners do not always receive notification of the prisoners' deaths. Those who do receive such information reportedly have been forced on occasion to pay the Government to retrieve the body of their relative.

Mohammed Chehrangi, an advocate for the cultural rights of Azeris, was arrested in December 1999. Azeri groups claim that Chehrangi was arrested to prevent his registration as a candidate in the February 2000 Majles elections (see Sections 3 and 5).

In March authorities closed the 50-year-old Iran Freedom Movement for "attempting to overthrow the Islamic regime." HRW reported that the closure came after the March 11 arrest of 21 independent political activists, including a former chancellor of Tehran University. The activists were associated with religious-nationalism, which advocates constitutional Islamic rule and a respect for democratic principles. The Government has arrested more than 40 persons for association with the Freedom Movement, including one of its founders, the prominent legal scholar Dr. Seyed Ahmad Sadr Haj Seyed Javadi. Security forces also reportedly ransacked the offices of the Bazargan Cultural Foundation and the Society of Islamic Engineers while searching for suspects.

In February and March 1999, security forces in the cities of Isfahan and Shiraz arrested 13 Jews. Among the group were several prominent rabbis, teachers of Hebrew, and their students, one a 16-year-old boy. They were held for 14 months or more without formal charges until their trial began in May 2000. The delay in clarification of charges appeared to violate Article 32 of the Constitution, which states in part that in cases of arrest "charges with the reasons for accusation must, without delay, be communicated and explained to the accused in writing, and a provisional dossier must be forwarded to the competent judicial authorities within a maximum of 24 hours so that the preliminaries to the trial can be completed as swiftly as possible." The court eventually convicted 10 of the 13 of charges relating to illegal contacts with Israel. Governments around the world criticized the detentions and trial as unfair and in violation of due process (see Sections 1.e. and 2.c.).

Authorities detained as many as 1,500 students following student protests on July 8, 1999, and subsequent riots. Many of them remain in prison at year's end (see Sections 1.a., 1.c., and 2.b.).

Numerous publishers, editors and journalists either were detained, jailed, fined, or prohibited from publishing their writings during the year (see Section 2.a.). The Government appeared to follow a policy of intimidation toward members of the media whom it considers to pose a threat to the current system of Islamic government.

Adherents of the Baha'i Faith continue to face arbitrary arrest and detention. The Government appears to adhere to a practice of keeping a small number of Baha'is in detention at any given time. Sources claim that such arrests are carried out to "terrorize" the community and to disrupt the lives of its members. Most of those arrested are charged and then quickly released. However, the charges against them are often not dropped, forcing them to live in a continuing state of uncertainty and apprehension (see section 2.c.). According to Baha'i sources, five Baha'is remained in prison as of the end of October, including two who were convicted of either apostasy or "actions against God" and sentenced to death. In October authorities released two Baha'is from prison in Mashad. One of those, whose original death sentence was reduced to 51/2 years was released after serving 5 years. The other was released after completing his 4-year sentence, which had been reduced from his original sentence of 10 years (see Section 2.c.).

The Government enforced house arrest and other measures to restrict the movements and ability to communicate of several senior religious leaders whose views regarding political and governance issues are at variance with the ruling orthodoxy. Several of these figures dispute the legitimacy and position of the Supreme Leader, Ayatollah Ali Khamenei. These clerics include Ayatollah Seyyed Hassan Tabataei-Qomi, who has been under house arrest in Mashad for more than 15 years, Ayatollah Ya'asub al-Din Rastgari, who has been under house arrest in Qom since late 1996, and Ayatollah Mohammad Shirazi, who died in December while under house arrest in Qom. Ayatollah Hossein Ali Montazeri, the former designated successor of the late Spiritual Leader, Ayatollah Khomeini, and an outspoken critic of the Supreme Leader, remains under house arrest and heightened police surveillance (see Section 2.a.). The followers of these and other dissident clerics, many of them junior clerics and students, reportedly have been detained in recent years and tortured by government authorities.

Iran and Iraq continued to exchange prisoners of war (POW's) and the remains of deceased fighters from the 1980-88 Iran-Iraq war, adding to the large number of Iraqi POW's returned by Iran in 1998. However, a final settlement of the issue between the two governments was not achieved by year's end.

Although reliable statistics are not available, international observers believe that between scores and hundreds of citizens are detained for their political beliefs.

No information is available regarding whether the law prohibits forced exile. The Government uses internal exile as a punishment.

The Government does not use forced exile, but many dissidents and ethnic and religious minorities leave the country due to a perception of threat from the Government.

e. Denial of Fair Public Trial

The court system is not independent and is subject to government and religious influence. It serves as the principal vehicle of the State to restrict freedom and reform in the society.

There are several different court systems. The two most active are the traditional courts, which adjudicate civil and criminal offenses, and the Islamic Revolutionary Courts. The latter were established in 1979 to try offenses viewed as potentially threatening to the Islamic Republic, including threats to internal or external security, narcotics crimes, economic crimes (including hoarding and overpricing), and official corruption. A special clerical court examines alleged transgressions within the clerical establishment, and a military court investigates crimes committed in connection with military or security duties by members of the army, police, and the Revolutionary Guards. A press court hears complaints against publishers, editors, and writers in the media. The Supreme Court has limited authority to review cases.

The judicial system has been designed to conform, where possible, to an Islamic canon based on the Koran, Sunna, and other Islamic sources. Article 157 provides that the head of the judiciary shall be a cleric chosen by the Supreme Leader. Ayatollah Mohammad Yazdi resigned as the head of the judiciary in August 1999, and was replaced by Ayatollah Mahmoud Hashemi Shahrudī. The head of the Supreme Court and Prosecutor General also must be clerics.

Many aspects of the prerevolutionary judicial system survive in the civil and criminal courts. For example, defendants have the right to a public trial, may choose their own lawyer, and have the right of appeal. Trials are adjudicated by panels of judges. There is no jury system in the civil and criminal courts. If a situation is not addressed by statutes enacted after the 1979 revolution, the Government advises judges to give precedence to their own knowledge and interpretation of Islamic law, rather than rely on statutes enacted during the Pahlavi monarchy.

Trials in the Revolutionary Courts, in which crimes against national security and other principal offenses are heard, are notorious for their disregard of international standards of fairness. Revolutionary Court judges act as both prosecutor and judge in the same case, and judges are chosen in part based on their ideological commitment to the system. Pretrial detention often is prolonged and defendants lack access to attorneys. Indictments often lack clarity and include undefined offenses such as "antirevolutionary behavior," "moral corruption," and "siding with global arrogance." Defendants do not have the right to confront their accusers. Secret or summary trials of 5 minutes duration occur. Others are show trials that are intended merely to highlight a coerced public confession.

In November 2000, a Revolutionary Court began the trials of 17 writers, intellectuals, and political figures who took part in an April conference in Berlin regarding the implications of the February 2000 Majles elections (see Section 3). The 17 defendants included 12 persons who had attended the conference and who were arrested upon their return to Iran. They were charged with taking part in antigovernment and anti-Islamic activities, and included investigative journalist Akbar Ganji, newspaper editor Mohammed Reza Jalaipour, Member of Parliament Jamileh Kadivar, women's rights activists Mehrangiz Kar and Shahla Lahidji, opposition politician Ezzatollah Sahabi, student leader Ali Afshari, and others, including two translators for the German Embassy in Tehran. According to HRW, on January 13, the Court convicted seven of them on the vague charge of "having conspired to overthrow the system of the Islamic Republic." The Court convicted three other defendants on lesser charges, imposing fines and suspended sentences, and acquitted seven others. The trial reportedly was closed, and HRW claimed that it violated recognized international standards for free trial because several of the defendants were held for months without access to legal counsel.

According to HRW, the sentences handed down by the Court included: 10 years in prison and then 5 years of internal exile for journalist Ganji (his sentence was reduced to 6 months on appeal, but increased to the original 10 years by the Tehran Press Courts); 10 and 9 year sentences for the 2 translators employed by the German Embassy in Tehran; 5 years for student leader Afshari; 4 1/2 years for politician Ezzatollah Sahabi; and 4 years each for Lahidji and Kar. Sahabi's appeal of that verdict had not been heard by year's end. He was provisionally released but rearrested following public remarks he made in March, and remained in detention without new charges being filed against him at year's end. For a time, Kar was not allowed to travel abroad for medical treatment for breast cancer. Kar's husband Siamak Pourzand disappeared in late November and has not been heard from since (see Section 1.b.).

In late December 2000, a military court began the trials of 18 persons in connection with the killings of several prominent dissidents and intellectuals in late 1998 (see Section 1.a.). In January 15 of the defendants were convicted; however, the results were overturned by the Supreme Court in August.

The legitimacy of the Special Clerical Court (SCC) system continued to be a subject of debate. The clerical courts, which were established in 1987 to investigate offenses and crimes committed by clerics, and which are overseen directly by the Supreme Leader, are not provided for in the Constitution, and operate outside the domain of the judiciary. In particular, critics allege that the clerical courts are used to prosecute certain clerics for expressing controversial ideas and for participating in activities outside the sphere of religion, such as journalism.

During the latter part of 2000, an SCC began the trial of Hojatoleslam Hassan Yousefi Eshkevari, a cleric who participated in the Berlin conference, on charges of apostasy and "corruption on earth," which potentially carry the death penalty. Eshkevari had called for more liberal interpretations of Islamic law in certain areas. He was sentenced to death, but the sentence was overturned on appeal in May. He was permitted a 2-day furlough from prison in September.

In November 1999, former Interior Minister and Vice President Abdollah Nouri was sentenced by a branch of the SCC to a 5-year prison term for allegedly publishing "anti-Islamic articles, insulting government officials, promoting friendly relations with the United States," and providing illegal publicity to dissident cleric Ayatollah Hossein Ali Montazeri in Khordad, a newspaper that was established by Nouri in late 1998 and closed at the time of his arrest. Nouri used the public trial to attack the legitimacy of the SCC (see Section 2.a.).

In April 1999, a branch of the SCC convicted Hojatoleslam Mohsen Kadivar, a Shi'a cleric and popular seminary lecturer, to 18 months in prison for "dissemination of lies and confusing public opinion" in a series of broadcast interviews and newspaper articles. Kadivar advocated political reform and greater intellectual freedom and criticized the misuse of religion to maintain power. In an interview published in a newspaper, Kadivar criticized certain government officials for turning criticism against them into alleged crimes against the State. He also observed that such leaders "mistake themselves with Islam, with national interests, or with the interests of the system, and in this way believe that they should be immune from criticism." He also allegedly criticized former Supreme Leader Ayatollah Khomeini and demonstrated support for dissident cleric Ayatollah Montazeri. Kadivar's trial was not open to the public.

It is difficult for women to obtain legal redress. A woman's testimony in court is worth only half that of a man's, making it difficult for a woman to prove a case against a male defendant.

The Government frequently charges members of religious minorities with crimes such as "confronting the regime" and apostasy, and conducts trials in these cases in the same manner as is reserved for threats to national security. Ayatollah Mohammad Yazdi, who resigned as head of the judiciary in August 2000, stated in 1996 that the Baha'i faith is an espionage organization. Trials against Baha'is have reflected this view (see Section 2.c.). The trial of 13 Iranian Jews on charges related to espionage for Israel was marked throughout by a lack of due process. The defendants were held for more than 1 year without being charged formally or given access to lawyers. The trial was closed, and the defendants were not allowed to choose their own lawyers. Following the trial, defense lawyers told news reporters that they were threatened by judiciary officials and pressured to admit their clients' guilt (see Sections 1.d. and 2.c.).

In December 1999, authorities rearrested former Deputy Prime Minister and longtime political dissident Abbas Amir-Entezam after an interview with him was published in an Iranian newspaper. Amir-Entezam has spent much of the past 20 years in and out of prison since being arrested on charges of collaboration with the United States following the seizure of the U.S. Embassy in Tehran by revolutionary militants in 1979. In his original trial, Amir-Entezam was denied defense counsel and access to the allegedly incriminating evidence that was gathered from the overtaken U.S. Embassy and used against him. Since then he has appealed for a fair and public trial, which has been denied to him. He has been a frequent victim of torture in prison; he suffered a ruptured eardrum due to repeated beatings, kidney failure resulting from denial of access to toilet facilities, and an untreated prostate condition. He reported having been taken on numerous occasions before a firing squad, told to prepare for death, only to be allowed to live. Amir-Entezam remained in prison at year's end (see Section 1.c.).

Independent legal scholar and member of the Islamic clergy Hojatoleslam Sayyid Mohsen Saidzadeh, who was convicted by the SCC in 1998 for his outspoken criticism of the treatment of women under the law, was released from prison in early in 1999; however, the Government banned him from performing any clerical duties for 5 years. Human rights groups outside the country noted reports that Saidzadeh's 1998 sentence also included a prohibition on publishing. He has ceased authoring monthly columns on legal issues, many focusing on the rights of women, since the time of his detention.

In December 2000, Judiciary Chief Mahmoud Hashemi Shahroudi announced an initiative to reform the Iranian judicial system. He said that the country is "still a long way off from having a reformed and developed judicial organization." He also announced that 40 judges, clerks, and other officials had been arrested on corruption charges. Some sources outside the country claim that Shahroudi used this initiative to purge the judiciary of some of its more moderate elements in the guise of fighting corruption.

No estimates are available regarding the number of political prisoners. However, the Government often arrests, convicts, and sentences persons on questionable criminal charges, including drug trafficking, when their actual "offenses" are political.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution states that "reputation, life, property, (and) dwelling(s)" are protected from trespass except as "provided by law;" however, the Government infringes on these rights. Security forces monitor the social activities of citizens, enter homes and offices, monitor telephone conversations, and open mail without court authorization.

Organizations such as the Ansar-e Hezbollah, an organization of hard-line vigilantes who seek to enforce their vision of appropriate revolutionary comportment upon the society, harass, beat, and intimidate those who demonstrate publicly for reform or who do not observe dress codes or other modes of correct revolutionary conduct. This includes women whose clothing does not cover the hair and all parts of the body except the hands and face, or those who wear makeup or nail polish. Ansar-e Hezbollah gangs also have been used to destroy newspaper offices and printing presses, intimidate dissident clerics, and disrupt peaceful gatherings (see Sections 2.a. and 2.b.). Ansar-e Hezbollah cells are organized throughout the country and linked to individual members of the country's leadership.

Vigilante violence includes attacking young persons considered too "un-Islamic" in their dress or activities, invading private homes, abusing unmarried couples, and disrupting concerts or other forms of popular entertainment. Authorities occasionally enter homes to remove television satellite dishes, or to disrupt private gatherings in which unmarried men and women socialize, or where alcohol, mixed dancing, or other forbidden activities are offered or take place. For example, more than 1,000 satellite dishes were confiscated after the October soccer riots, according to press reports (see Section 2.a. and 2.b.). Enforcement appears to be arbitrary, varying widely with the political climate and the individuals involved. Authorities reportedly can be bribed in some of these circumstances.

There were reports during the year that authorities in several cities confiscated homes and property of a number of Baha'is (see Section 2.c.).

Prison guards intimidated family members of detainees (see Section 1.c.). Opposition figures living abroad reported harassment of their relatives in the country.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of the press, except when published ideas are "contrary to Islamic principles, or are detrimental to public rights;" however, the Government restricts freedom of speech and of the press in practice. After the election of President Khatami in 1997, the independent press, especially newspapers and magazines, played an increasingly

important role in providing a forum for an intense debate regarding reform in the society. However, basic legal safeguards for freedom of expression are lacking, and the independent press has been subjected to arbitrary enforcement measures by elements of the Government, notably the judiciary, which see in such debates a threat to their own hold on power.

During the year, approximately 60 parliamentarians were arrested and charged with "inciting public opinion." The cases were a result of the ongoing conflict between reformist parliamentarians and the hardline judiciary over precisely what type of speech is protected by parliamentary immunity (see Section 1.d.).

Newspapers and magazines represent a wide variety of political and social perspectives, some allied with particular figures within the Government. Many subjects of discussion are tolerated, including criticism of certain government policies. However, the 1995 Press Law prohibits the publishing of a broad and ill-defined category of subjects, including material "insulting Islam and its sanctities" or "promoting subjects that might damage the foundation of the Islamic Republic." Generally prohibited topics include fault-finding comment regarding the personality and achievements of the late Leader of the Revolution, Ayatollah Khomeini; direct criticism of the Supreme Leader; assailing the principle of velayat-e faqih, or rule by a supreme religious leader; questioning the tenets of certain Islamic legal principles; sensitive or classified material affecting national security; promotion of the views of certain dissident clerics, including Grand Ayatollah Ali Montazeri; and advocating rights or autonomy for ethnic minorities.

Oversight of the press is carried out in accordance with a press law that was enacted in 1995. The law established the Press Supervisory Board, which is composed of the Minister of Islamic Culture and Guidance, a Supreme Court judge, a Member of Parliament, and a university professor who is appointed by the Minister of Islamic Culture and Guidance. The Board is responsible for issuing press licenses and for examining complaints filed against publications or individual journalists, editors, and publishers. In certain cases, the Press Supervisory Board may refer complaints to the courts for further action, including closure. The Press Court hears such complaints. Its hearings are conducted in public and feature the presence of a jury that is composed of clerics, government officials, and editors of government-controlled newspapers. The jury is empowered to recommend to the presiding judge the guilt or innocence of defendants and the severity of any penalty to be imposed, although these recommendations are not binding legally.

In the past, recommendations made by Press Court juries for relatively lenient penalties often were disregarded by the presiding judge in favor of harsher measures, including closure. Recently some human rights groups have indicated that the increasingly conservative Press Court has assumed responsibility for cases before they have been considered by the Press Supervisory Board, thus resulting in harsher judgements in many cases.

In March 2000, immediately after the success of reformers to capture a majority of seats in Parliament in the February 2000 parliamentary elections, the outgoing Parliament passed amendments to the Press Law that gave the Press Court increased procedural and jurisdictional power. The amendments allowed prosecution of individual journalists, in addition to their editors and publishers, for a broad range of ill-defined political offenses. The new Parliament (which was seated in May 2000), introduced a bill in August 2000 to reverse the restrictive amendments. However, Supreme Leader Khamenei intervened with a letter to the Speaker demanding that the bill be dropped from consideration. Semiofficial vigilante groups appeared outside the Parliament, creating an atmosphere of intimidation. Despite some strongly worded objections from members, the bill was withdrawn.

Public officials frequently levy complaints against journalists, editors, publishers, and even rival publications. The practice of complaining about the writings of journalists crosses ideological lines. Offending writers are subject to lawsuits and fines. Suspension from journalistic activities and imprisonment are common punishments for guilty verdicts for offenses ranging from "fabrication" to "propaganda against the State" to "insulting the leadership of the Islamic Republic." Police raid newspaper offices, and Ansar-e Hezbollah mobs attack the offices of liberal publications and bookstores without interference from the police or prosecution by the courts.

The Government's record regarding freedom of expression, which has worsened during the past few years, continued to deteriorate. It remained a central issue in the struggle between hardliners and political reformers. The Government continued its policy of issuing licenses for new publications, some of which engaged in open criticism of certain government policies. However, the Government issues such licenses at a much slower rate than in past years. Beginning in late April 2000, the Press Court closed virtually all remaining newspapers associated with the reform-oriented press. Over the course of a few days, the 14 most prominent reform newspapers were ordered closed, without hearings. By the end of 2000, more than 30 independent newspapers and journals were closed. A few mildly proreform newspapers continued to publish, but with restrictions. Hamshahri, a daily newspaper published by the Tehran municipality, was ordered to restrict its circulation to the Tehran city limits. Others continued to publish, but only with heavy self-censorship.

Dozens of individual editors and journalists have been charged and tried by the Press Court, and several prominent journalists were jailed for long periods without trial. Others have been sentenced to prison terms or exorbitant fines. Among those imprisoned were Mashallah Shamsolvaezin, the editor of a number of now-banned newspapers; Latif Safari, Shamsolvaezin's publisher; and independent journalists, such as Akbar Ganji, Ahmed Zeidabadi, Massoud Behnoud, Ebrahim Nabavi, and Ezzatollah Sahabi. In November 2000, Ganji went on trial for statements that he made at a conference in Berlin regarding Iranian politics (see Sections 1.c. and 1.e.).

HRW reported that at a televised news conference on August 21, 2000, President Khatami stated that the situation regarding the press and other media cases is "not satisfactory". HRW also quoted conservative Ayatollah Mesbah Yazdi, who reportedly said on October 3, 2000 that the Government should have "hanged all these idle babblers." In December 2000, Minister of Culture and Islamic Guidance Ataollah Mohajerani, a moderate who had attempted to protect press freedoms, resigned, representing a further setback to the protection of freedom of the press.

Press freedom continued to deteriorate during the year. HRW reported that the Government closed philosophical and cultural monthly Kiyān in January. The Government also closed one daily and three monthly independent newspapers in March. Authorities arrested journalists Fariba Davoodi-Mohajer, Mohammed Vali-Beig, and Massoud Behnoud in February, and arrested Hoda Saber and Reza Alijani in March. HRW claimed that by November, more than 50 daily and weekly newspapers had been issued closure orders, and that more than 20 journalists, editors, and publishers remained in prison. In November the Committee to Protect Journalists published a report in which it reported 16 cases of government closures of newspapers.

The Government carefully monitors the statements and views of the country's senior religious leaders to prevent dissent within the clerical ranks. In November 1997, Ayatollah Hossein Ali Montazeri, a cleric formerly designated as the successor to the late Spiritual Leader Ayatollah Khomeini, called into question the authority of the Supreme Leader, Ali Khamenei, criticizing his increasing intervention in government policy. The comments sparked attacks by Ansar-e Hezbollah mobs on Montazeri's residence and on a Koranic school in Qom run by Montazeri. The promotion of Montazeri's views were among the charges brought against clerics Mohsen Kadivar and former Interior Minister Abdollah Nouri at hearings of the Special Clerical Court in 1999 (see Section 1.e.).

The press reported throughout 2000 that several persons were jailed for expressing support for Grand Ayatollah Montazeri. In October 2000, Akbar Tajik-Saeeki, identified as the prayer leader at a Tehran mosque, reportedly was jailed by the SCC for signing a petition that protested the continued detention of Grand Ayatollah Montazeri. In December 2000, one of Montazeri's sons was arrested for distributing his father's writings. HRW reported that there were a number of protests against Montazeri's detention during the year, including a letter circulated in June by his children asking that the Government lift restrictions on him, and a petition signed on Montazeri's behalf by 126 out of the 290 members of Parliament.

The 134 signatories of the 1994 Declaration of Iranian Writers, which declared a collective intent to work for the removal of barriers to freedom of thought and expression, remain at risk. In July 1999, the Association of International Writers (PEN) released a statement noting that authorities had never solved the murders of signatories Ahmad Mirallai, Ghafar Hosseini, Ahmad Modhtari, Mohammad Jafar Pouyandeh, Ebrahim Zalzadeh, and Darioush and Parvaneh Forouhar, nor the disappearance in late 1998 of Pirouz Davani. PEN had reported in October 1998 that Declaration signatories Mohammad

Pouyandeh, Mohammad Mokhtari, Houshang Golshiri, Kazem Kardevani, and Mansour Koushan were questioned by a Revolutionary Court in connection with their attempts to convene a meeting of the Iran Writer's Association. Mokhtari and Pouyandeh subsequently were killed, while signatory Mansour Koushan reportedly fled to Norway.

The Government directly controls and maintains a monopoly over all television and radio broadcasting facilities; programming reflects the Government's political and socio-religious ideology. Because newspapers and other print media have a limited circulation outside large cities, radio and television serve as the principal news source for many citizens. Satellite dishes that receive foreign television broadcasts are forbidden; however, many citizens, particularly the wealthy, own them. The Government confiscated many satellite dishes in the wake of the October soccer riots (see Section 2.b.).

The Ministry of Islamic Culture and Guidance is charged with screening books prior to publication to ensure that they do not contain offensive material. However, some books and pamphlets critical of the Government are published without reprisal. The Ministry inspects foreign printed materials prior to their release on the market.

Legal scholar Hojatoleslam Sayyid Mohsen Saidzadeh, who was convicted by the SCC in 1998 for his outspoken criticism of the treatment of women under the law, was released from prison early in 1999; however, the Government banned him from performing any clerical duties for 5 years and prohibited him from publishing (see Section 1.e.).

The Government effectively censors Iranian-made films, since it is the main source of funding for domestic film producers. Those producers must submit scripts and film proposals to government officials in advance of funding approval. However, such government restrictions appear to have eased since the 1997 election of President Khatami.

President Khatami announced in September 1998 that the Government would take no action to threaten the life of British author Salman Rushdie, or anyone associated with his work "The Satanic Verses." However, his remarks were repudiated by other parties, including the 15 Khordad Foundation, which claims to have financed a bounty for the murder of Rushdie (see Section 1.a.).

Academic censorship persists. Government informers who monitor classroom material reportedly are common on university campuses. Admission to universities is politicized; all applicants must pass "character tests" in which officials screen out applicants critical of the Government's ideology. To obtain tenure, professors must cooperate with government authorities over a period of years. Ansar-e Hezbollah thugs disrupt lectures and appearances by academics whose views do not conform with their own.

b. Freedom of Peaceful Assembly and Association

The Constitution permits assemblies and marches "provided they do not violate the principles of Islam;" however, in practice the Government restricts freedom of assembly and closely monitors gatherings to ensure that they do not constitute uncontrolled antigovernment protest. Such gatherings include public entertainment and lectures, student gatherings, labor protests, funeral processions, and Friday prayer gatherings. A significant factor for groups in deciding whether to hold a public gathering is whether it would be opposed by the semiofficial Ansar-e Hezbollah, which uses violence and intimidation to disperse such assemblies.

In October riots and demonstrations broke out throughout the country after the national soccer team lost a match it had been heavily favored to win. The main participants in the unrest were young persons, who appeared to use the situation to show their general displeasure with the restrictive lifestyle imposed on them by the Government. The Government arrested hundreds of persons. There were anecdotal reports that some demonstrators were killed; however, the Government denied this.

The UNSR reported that in December 2000, police forcefully disrupted a peaceful demonstration by Kurdish students at the University of Tehran, injuring and arresting a number of the demonstrators.

In August 2000, two leading reform intellectuals, Mohsen Kadivar and Abdul Karim Soroush, were prevented by semiofficial vigilantes armed with clubs and knives from addressing a student convention in Khorramabad. Subsequent clashes between students and vigilantes resulted in the death of a police officer and injuries. The authorities arrested 150 persons.

On July 8, 1999, students at University of Tehran who were protesting proposed legislation by the Majles that would limit press freedoms and the Government's closure of a prominent reform-oriented newspaper, were attacked by elements of the security forces and Ansar-e Hezbollah thugs. Police forces reportedly looked on and allowed repeated attacks against the students and their dormitory. HRW reported that, according to witnesses, at least 4 students were killed in the assault on the dormitory, 300 were injured, and 400 were detained. The demonstrations continued to grow in subsequent days to include many nonstudents. Looting, vandalism, and large-scale rioting began and spread to cities outside Tehran. Student groups attempted to distance their organizations from these later acts, which they blamed on government-sanctioned agitators. The Government intervened to stop the rioting and announced a July 14th counter-demonstration of regime loyalists and off-duty government workers, many of whom were bussed in from other cities for the demonstration.

In September 1999, the head of the Tehran Revolutionary Court, Hojatoleslam Gholamhossein Rahbarpour, was quoted as saying that 1,500 students were arrested during the riots, 500 were released immediately after questioning, 800 were released later, and formal investigations were undertaken against the remaining 200. He also announced that four student leaders were sentenced to death by a Revolutionary Court for their role in the demonstrations. The death sentences reportedly were commuted to prison terms in 2000. The UNSR's 2000 report stated that about two-thirds of the students who initially were arrested subsequently were released, but noted that there has been no formal accounting of all the persons arrested in connection with the July 1999 demonstrations.

The Government arrested the leaders of the Iran Nations Party in the aftermath of the July 1999 demonstrations. The party is a secular nationalist movement that predates the revolution and is viewed as a threat by certain elements of the Government. The party was accused of inciting rioters and of encouraging disparaging slogans against "sacred values." Agents of the intelligence service in late 1998 killed the former head of the Iran Nations Party, Darioush Forouhar, along with his wife (see Section 1.a.).

In the aftermath of these events, the Government took action against members of the security forces for their violent assault on the student dormitory, and against student leaders, demonstrators, and political activists, whom it blamed for inciting illegal behavior. In August 1999, the commander of the security forces, General Hedayat Lotfian, was summoned before the Parliament to explain the role of his officers in the dormitory raid. He reportedly announced that 98 officers were arrested for their actions. In February 2000, 20 police officers and officials were tried on charges of misconduct in connection with the demonstrations. The court found that misconduct had occurred, and ordered compensation for 34 injured students. However, the court released all but two of the accused officers.

The Government limits freedom of association. The Constitution provides for the establishment of political parties, professional associations, Islamic religious groups, and organizations for recognized religious minorities, provided that such groups do not violate the principles of "freedom, sovereignty, and national unity," or question Islam as the basis of the Islamic Republic. President Khatami repeatedly has declared as a major goal the development of civil society. A newspaper reported in June 1999 that the Article Ten Commission, a government body responsible for reviewing applications for the establishment of political parties, guilds, societies, and nongovernmental organizations (NGO's), released figures indicating that as of April 1999, "85 political, 115 specialized, and 26 religious minority organizations and associations" were active in the country.

In March the Government closed the 50-year-old Iran Freedom Movement for "attempting to overthrow the Islamic regime" (see Section 1.d.).

c. Freedom of Religion

The Government restricts freedom of religion. The Constitution declares that the "official religion of Iran is Islam and the sect followed is that of Ja'fari (Twelver) Shi'ism," and that this principle is "eternally immutable." It also states that "other Islamic denominations are to be accorded full respect," and recognizes Zoroastrians, Christians, and Jews (Iran's pre-Islamic religions) as the only "protected religious minorities." Religions not specifically protected under the Constitution do not enjoy freedom of religion. This situation most directly affects the nearly 350,000 followers of the Baha'i Faith, who effectively enjoy no legal rights.

The central feature of the country's Islamic republican system is rule by a "religious jurisconsult." Its senior leadership, including the Supreme Leader of the Revolution, the President, the head of the Judiciary, and the Speaker of the Islamic Consultative Assembly (Parliament), is composed principally of Shi'a clergymen.

Religious activity is monitored closely by the Ministry of Intelligence and Security (MOIS). Adherents of recognized religious minorities are not required to register individually with the Government, although their community, religious, and cultural organizations, as well as schools and public events, are monitored closely. Baha'is are not recognized by the Government as a legitimate religious group; rather, they are considered heretics belonging to an outlawed political organization. Registration of Baha'is is a police function. Evangelical Christian groups are pressured by government authorities to compile and hand over membership lists for their congregations. Evangelicals have resisted this demand. Non-Muslim owners of grocery shops are required to indicate their religious affiliation on the fronts of their shops.

The population is approximately 99 percent Muslim, of which 89 percent are Shi'a and 10 percent are Sunni (mostly Turkomans, Arabs, Baluchs, and Kurds, living in the southwest, southeast, and northwest). Baha'i, Christian, Zoroastrian, and Jewish communities constitute less than 1 percent of the population. Sufi brotherhoods are popular, but there are no reliable figures available to judge their true size.

Other than seats set aside in the Parliament for one representative each from the Jewish, Christian, and Zoroastrian communities, religious minorities are barred from being elected to a representative body and from holding senior government or military positions (see Sections 3 and 5).

Members of religious minorities are allowed to vote, but they may not run for President. All religious minorities suffer varying degrees of officially sanctioned discrimination, particularly in the areas of employment, education, and housing (see Section 5).

The Government generally allows recognized religious minorities to conduct religious education of their adherents, although it restricts this right considerably in some cases. There are separate and privately funded Zoroastrian, Jewish, and Christian schools. The schools are supervised by the Ministry of Education, which imposes certain curriculum requirements. With few exceptions, the directors of the private schools must be Muslim. Attendance at the schools is not mandatory for recognized religious minorities. All textbooks used in course work must be approved for use by the Ministry of Education, including religious texts. Religious texts in non-Persian languages require approval by the authorities for use. This requirement imposes sometimes significant translation expenses on minority communities. Recognized religious minorities may use non-Persian languages to provide religious instruction, but often teach in Persian. Since the authorities understand what is being said in Persian, they may exercise greater control over what is being taught than they would be able to if the instruction were in a non-Persian language. In particular, evangelical Christian and Jewish communities have suffered harassment and arrest by authorities for the content of school instruction and religious services.

Recognized religious minorities are allowed by the Government to establish community centers and certain cultural, social, sports, or charitable associations that they finance themselves. This does not apply to the Baha'i community, which, since 1983, has been denied the right to assemble officially or to maintain administrative institutions. Because the Baha'i Faith has no clergy, the denial of the right to form such institutions and elect officers has threatened its very existence in the country.

In 1993 the UNSR reported the existence of a government policy directive regarding the Baha'is. According to the directive, the Supreme Revolutionary Council instructed government agencies to block the progress and development of the Baha'i community, expel Baha'i students from universities, cut Baha'i links with groups outside Iran, restrict employment of Baha'is, and deny Baha'is "positions of influence," including those in education. The Government claims that the directive is a forgery. However, it appears to be an accurate reflection of government practice to slowly eradicate the Baha'i community.

In September in conjunction with an appeal connected to the 1998 raids and property confiscations, the Ministry of Justice issued a report that reiterated that government policy continued to be to eventually eliminate them as a community. It stated in part that Baha'is could only be enrolled in schools provided they did not identify themselves as Baha'is, and that Baha'is preferably should be enrolled in schools that have a strong and imposing religious ideology. The report also stated that Baha'is must be expelled from universities, either in the admission process or during the course of their studies, once it becomes known that they are Baha'is.

University applicants are required to pass an examination in Islamic theology. Although public-school students receive instruction in Islam, this requirement limits the access of most religious minorities to higher education. Applicants for public sector employment similarly are screened for their knowledge of Islam.

The legal system discriminates against religious minorities, awarding lower monetary compensation in injury and death lawsuits and imposing heavier punishments than on Muslims. Muslim men are free to marry non-Muslim women, but the opposite does not apply. Marriages between Muslim women and non-Muslim men are not recognized.

The Government is highly suspicious of any proselytizing of Muslims by non-Muslims and can be harsh in its response, in particular against Baha'is and evangelical Christians. The Government regards the Baha'i community, whose faith originally derives from a strand of Islam, as a heretical sect, and has fueled anti-Baha'i and anti-Semitic sentiment in the country for political purposes.

The Government does not ensure the right of citizens to change or recant their religious faith. Apostasy, specifically conversion from Islam, may be punishable by death.

Although Sunni Muslims are accorded full respect under the terms of the Constitution, some Sunni groups claim to be discriminated against by the Government. In particular, Sunnis cite the lack of a Sunni mosque in Tehran and claim that authorities refuse to authorize construction of a Sunni place of worship in the capital. Sunnis also have accused the state broadcasting company of airing programming insulting to Sunnis. Numerous Sunni clerics have been killed in recent years, some allegedly by government agents.

Sufi organizations outside the country remain concerned about repression by the authorities of Sufi religious practices.

The largest non-Muslim minority is the Baha'i Faith, estimated at nearly 350,000 adherents throughout the country. The Baha'i Faith originated in Iran during the 1840's as a reformist movement within Shi'a Islam. Initially it attracted a wide following among Shi'a clergy. The political and religious authorities of that time joined to suppress the movement, and since then the hostility of the Shi'a clergy to the Baha'i Faith has remained intense. Baha'is are considered apostates because of their claim to a valid religious revelation subsequent to that of the Prophet Mohammed. The Baha'i Faith is defined by the Government as a political "sect," historically linked to the Pahlavi monarchy and, therefore, as counterrevolutionary. Historically at risk, Baha'is often have suffered increased levels of mistreatment during times of political unrest.

Baha'is may not teach or practice their faith or maintain links with coreligionists abroad. The fact that the Baha'i world headquarters is situated in what is now the state of Israel (established by the founder of the Baha'i Faith in the 19th century in what was then Ottoman-controlled Palestine) exposes Baha'is to government charges of "espionage on behalf of Zionism," particularly when Baha'is are caught communicating with or remitting monetary contributions to the Baha'i Faith headquarters.

Broad restrictions on Baha'is appear to be geared to destroying them as a community. Baha'is repeatedly have been offered relief from mistreatment in exchange for recanting their faith. Baha'i cemeteries, holy places, historical sites, administrative centers, and other assets were seized shortly after the 1979 revolution. None of these properties have been returned, and many have been destroyed. Baha'is are not allowed to bury and honor their dead in keeping with their religious tradition. They are permitted access only to areas of wasteland that the Government designates for their use, and are not allowed to mark graves. Many historic Baha'i gravesites have been desecrated or destroyed.

In 2000 in the city of Abadeh, a Baha'i cemetery with 22 graves was bulldozed by a Revolutionary Guard officer. In what seemed to be a hopeful sign, the Government this year offered the Tehran community a piece of land for use as a cemetery. However, the land was in the desert, with no access to water, making it impossible to perform Baha'i mourning rituals. In addition, the Government stipulated that no markers be put on individual graves and that no mortuary facilities be built on the site, making it impossible to perform a proper burial.

According to the National Spiritual Assembly of the Baha'is of the U.S., since 1979 more than 200 Baha'is have been killed and 15 disappeared and are presumed dead. The Government continued to imprison and detain Baha'is based on their religious beliefs.

Manuchehr Khulusi was arrested in June 1999 while visiting fellow Baha'is in the town of Birjand, and was imprisoned until his release in May 2000. During his imprisonment, Khulusi was interrogated, beaten, held in solitary confinement, and denied access to his lawyer. The charges brought against him still are unknown, but they were believed to be related to his faith. The Islamic Revolutionary Court in Mashhad had held a 2-day trial in September 1999 and then sentenced him to death in February 2000. Despite Khulusi's release, it is unclear if the conviction and death sentence against him still stand.

Ruhollah Rowhani, a Baha'i, was executed in July 1998 after having served 9 months in solitary confinement on a charge of apostasy, which arose from his allegedly having converted a Muslim woman to the Baha'i Faith. The woman claimed that her mother was a Baha'i and she herself had been raised a Baha'i. Rowhani was not accorded a public trial, and no sentence was announced prior to his execution.

Two Baha'is Sirus Zabihi-Moghaddam and Hadayat Kashefi-Najafabadi, were tried alongside Rowhani in 1998 and later sentenced to death by a revolutionary court in Mashad for practicing their faith. In 2000 the sentences were reduced to jail terms of 7 and 5 years, respectively. Kashefi-Najafabadi was released in October after serving 4 years of his sentence.

Baha'i group meetings and religious education, which often take place in private homes and offices, are curtailed severely. Public and private universities continue to deny admittance to Baha'i students, which is particularly demoralizing to a community that traditionally has placed a high value on education. Denial of access to higher education appears aimed at the eventual impoverishment of the Baha'i community.

The property rights of Baha'is generally are disregarded. Since 1979 large numbers of private and business properties belonging to Baha'is have been confiscated. In recent months, 14 Baha'i homes were seized and handed over to an agency of Supreme Leader Khamene'i. According to sources, authorities confiscated Baha'i properties in Kata and forced several families to leave their homes and farmlands. Authorities also imprisoned some, and did not permit others to harvest their crops. Sources also report that authorities in Tehran, Isfahan, and Shiraz also confiscated private Baha'i property during the year. In one instance, a woman from Isfahan who legally traveled abroad found that her home had been confiscated when she returned home. This year the Government also seized private homes in which Baha'i youth classes were held despite the owners having proper ownership documents. In 1999 three Baha'i homes in Yazd and one in Arbakan were confiscated because their owners were members of the Baha'i community. In September and October 1998, government officers plundered more than 500 Baha'i homes throughout the country and seized personal household effects, such as furniture and appliances. The Government's seizure of Baha'i personal property, as well as its denial of access to education and employment, is eroding the economic base of the Baha'i community.

In 1999 authorities in Khurasan intensified their efforts to intimidate and undermine Baha'i education. Two teachers in Mashhad were arrested and sentenced to 3 years' imprisonment. Their students were given suspended sentences, to be carried out if the students again participated in religious education classes. Three more Baha'is were arrested in Bujnurd in northern Khurasan for participating in religious education gatherings. After 6 days in prison, they were released with suspended sentences of 5 years. The use of suspended sentences appears to be a government tactic to discourage Baha'is from taking part in monthly religious gatherings.

In September 1998, authorities conducted a nationwide raid of more than 500 homes and offices owned or occupied by Baha'is to disrupt the activities of the Baha'i Institute of Higher Learning. Also known as the "Open University," the Institute was established by the Baha'i community shortly after the revolution to offer opportunities in higher education to Baha'i students who had been denied access to the country's high schools and universities. The Institute employed Baha'i faculty and professors, many of whom had been dismissed from teaching positions by the Government as a result of their faith, and conducted classes in homes or offices owned or rented by Baha'is. During the operation, which took place in at least 14 different cities, 36 faculty members were arrested, and a variety of personal property, including books, papers, and furniture, either were destroyed or confiscated. Government interrogators sought to force the detained faculty members to sign statements acknowledging that the Open University was defunct and pledging not to collaborate with it in the future. Baha'is outside the country report that none of the 36 detainees would sign the document. All but 4 of the 36 persons detained during the September 1998 raid on the Baha'i Institute were released by November 1998.

In March 1999, Dr. Sina Hakiman, Farzad Khajeh Sharifabadi, Habibullah Ferdosian Najafabadi, and Ziaullah Mirzapanah, the four remaining detainees from the September 1998 raid, were convicted under Article 498 of the Penal Code and sentenced to prison terms ranging from 3 to 10 years. In the court verdict, the four were accused of having establishing a "secret organization" engaged in "attracting youth, teaching against Islam, and teaching against the regime of the Islamic Republic." According to Baha'i groups outside Iran, the four taught general science and Persian literature courses. In July 1999, Mirzapanah, who had been sentenced to 3 years in prison, became ill and was hospitalized. Prison authorities allowed him to return home upon his recovery on the understanding that they could find him whenever necessary. The other three were released in December 1999.

The Government appears to adhere to a practice of keeping a small number of Baha'is in arbitrary detention, some at risk of execution, at any given time. There were five Baha'is reported to be under arrest for practicing their faith at year's end, two under sentence of death. In addition the Government appears to engage in harassment of the Baha'i community by arresting persons arbitrarily, charging Baha'is, and then releasing them, often without dropping the charges against them. Those with charges still pending against them fear that they may be arrested at any time.

Baha'is regularly are denied compensation for injury or criminal victimization. Government authorities claim that only Muslim plaintiffs are eligible for compensation in these circumstances. In practice, Baha'is continue to be denied most forms of government employment (see Section 5).

The Government often prevents Baha'is from traveling outside the country. In February the Government denied visas to the Baha'i delegation to the Regional Preparatory Conference for the World Conference on Racism, held in Tehran. The delegation was composed of American, Japanese, South Korean, and Indian nationals. However, it has become somewhat easier for Baha'is to obtain passports in order to travel abroad. In addition some Iranian embassies abroad do not require applicants to state a religious affiliation. In such cases, Baha'is more likely are able to renew passports.

Over the past 2 years, the Government has taken some positive steps in recognizing the rights of Baha'is, as well as other religious minorities. In November 1999, President Khatami publicly stated that no one in the country should be persecuted because of his or her religious beliefs. He added that he would defend the civil rights of all citizens, regardless of their beliefs or religion. Subsequently the Expediency Council approved the "Right of Citizenship" bill, affirming the social and political rights of all citizens and their equality before the law. In February 2000, following approval of the bill, the head of the judiciary issued a circular letter to all registry offices throughout the country, which permits any couple to be registered as husband and wife without being required to state their religious affiliation. This measure effectively permits the registration of Baha'i

marriages in the country. Previously Baha'i marriages were not recognized by the Government, leaving Baha'i women open to charges of prostitution. Consequently children of Baha'i marriages were not recognized as legitimate and therefore were denied inheritance rights.

The UNSR estimated the Christian Community at approximately 300,000. Of these the majority are ethnic Armenians and Assyro-Chaldeans. Protestant denominations and evangelical churches also are active, although nonethnically based groups report restrictions on their activities. The UNSR reported that Christians are emigrating at an estimated rate of 15,000 to 20,000 per year.

The authorities have become particularly vigilant in recent years in curbing what is perceived as increasing proselytizing activities by evangelical Christians, whose services are conducted in Persian. Government officials have reacted to this perceived activity by closing evangelical churches and arresting converts. Members of evangelical congregations are required to carry membership cards, photocopies of which must be provided to the authorities. Worshipers are subject to identity checks by authorities posted outside congregation centers. Meetings for evangelical services have been restricted by the authorities to Sundays, and church officials have been ordered to inform the Ministry of Information and Islamic Guidance before admitting new members to their congregations.

Since conversion by a Muslim to a non-Muslim religion may be considered apostasy under traditional Shari'a (Islamic law) practices enforced in the country, non-Muslims may not proselytize Muslims without putting their own lives at risk. Evangelical church leaders are subject to pressure from authorities to sign pledges committing them not to evangelize among Muslims or to allow Muslims to attend church services.

In 1999 one organization reported the deaths of 8 evangelical Christians at the hands of authorities in the previous 11 years, and between 15 and 23 disappearances between November 1997 and November 1998.

Mistreatment of Evangelical Christians has continued in recent years. Christian groups have reported instances of government harassment of churchgoers in Tehran, in particular of worshipers at the Assembly of God congregation in the capital. Cited instances of harassment included conspicuous monitoring outside Christian premises by Revolutionary Guards to discourage Muslims or converts from entering church premises and demands for presentation of identity papers of worshipers inside.

Estimates of the size of the Iranian Jewish community vary from 25,000 to 30,000. These figures represent a substantial reduction from the estimated 75,000 to 80,000 Jews who resided in the country prior to the 1979 revolution.

While Jews are a recognized religious minority, allegations of official discrimination are frequent. The Government's anti-Israel policies, coupled with a perception among radicalized Muslim elements in Iran that Jewish citizens support Zionism and the State of Israel, create a threatening atmosphere for the small Jewish community. Jewish leaders reportedly are reluctant to draw attention to official mistreatment of their community due to fear of government reprisal.

Some Jewish groups outside the country cite an increase in anti-Semitic propaganda in the official and semiofficial media as adding to the pressure felt by the Jewish community. One example cited is the periodic publication of the anti-Semitic and fictitious Protocols of the Elders of Zion, both by the Government and by periodicals associated with hard-line elements of the Government. In 1986 the Iranian Embassy in London was reported to have published and distributed the Protocols in English. The Protocols also were published in serial form in the country in 1994 and again in January 1999. On the latter occasion they were published in Sobh, a conservative monthly publication reportedly aligned with the security services.

In principle, with some exception, there appears to be little restriction or interference with the religious practice of Judaism. However, education of Jewish children has become more difficult in recent years. According to sources, the Government in theory allows the teaching of Hebrew, recognizing that it is necessary for Jewish religious practice. However, it strongly discourages teachers from distributing Hebrew texts to students, in practice making it difficult to teach the language. Furthermore the Government has required that several Jewish schools remain open on Saturdays, the Jewish Sabbath, in

conformity with the schedule of other schools in the school system. Working or attending school on the Sabbath violates Jewish religious law, and this requirement has made it difficult for religious Jews to both attend school and practice their religion.

Jews were gradually dismissed from most government positions after 1979. Jews are permitted to obtain passports and to travel outside the country; however, with the exception of certain business travelers, they are required by the authorities to obtain government clearance (and pay additional fees) before each trip abroad. The Government appears concerned about the emigration of Jews and permission generally is not granted for all members of a Jewish family to travel outside the country at the same time (see Section 2.d.).

In February and March 1999, 13 Jews were arrested in the cities of Shiraz and Isfahan. Among the group were several prominent rabbis, teachers of Hebrew, and their students. The charges centered on alleged acts of espionage on behalf of Israel, an offense punishable by death. The 13 were jailed for more than a year before trial, largely in solitary confinement, without official charges or access to lawyers. In April 2000, the defendants were appointed lawyers, and a closed trial commenced in a revolutionary court in Shiraz. Human rights groups and governments around the world criticized the lack of due process in the proceedings. The UNSR characterized them as "in no way fair." In July 2000, 10 of the 13, along with 2 Muslim defendants, were convicted on charges of illegal contact with Israel, conspiracy to form an illegal organization, and recruiting agents. They received prison sentences ranging from 4 to 13 years. Three were acquitted. The lawyers of those convicted filed an appeal and in September 2000, an appeals court overturned the convictions for forming an illegal organization and recruiting agents, but upheld the convictions for illegal contacts with Israel. Their sentences were reduced to between 2 and 9 years' imprisonment. In January the Supreme Court rejected a final appeal. One of the 10 convicted was released in February upon completion of his prison term; 9 remained in prison at year's end.

Jewish groups outside the country noted that the March 1999 arrest of the 13 Jewish individuals coincided with an increase in anti-Semitic propaganda in newspapers and journals associated with hardline elements of the Government. Since the beginning of the trial, Jewish businesses in Tehran and Shiraz have been targets of vandalism and boycotts, and Jews reportedly suffered personal harassment and intimidation.

According to the U.N. High Commissioner for Refugees (UNHCR), the Mandaean are included among the country's recognized religious minorities. The small community faces discrimination similar to that experienced by the country's other pre-Islamic religious minorities.

The Government restricts the movement of several senior religious leaders, some of whom have been under house arrest for years (see Sections 1.d. and 2.d.), and often charges members of religious minorities with crimes such as drug offenses, "confronting the regime," and apostasy (see Section 1.e.).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Government places some restrictions on these rights. Citizens may travel to any part of the country, although there have been restrictions on travel to Kurdish areas during times of occasional heavy fighting. Roadblocks and security checks are common on routes between major cities. Citizens may change their place of residence without obtaining official permission. The Government requires exit permits (a validation stamp placed in the traveler's passport) for draft-age men and citizens who are politically suspect. Some citizens, particularly those whose skills are in short supply and who were educated at government expense, had to post bonds to obtain exit permits. The Government restricts the movement of certain religious minorities and of several religious leaders (see Sections 1.d. and 2.c.).

Citizens returning from abroad at times are subject to search and extensive questioning by government authorities for evidence of antigovernment activities abroad. Cassette tapes, printed material, personal correspondence, and photographs are subject to confiscation.

The Government permits Jews to travel abroad, but often denies them the multiple-exit permits normally issued to other citizens. The Government normally does not permit all members of a Jewish family to travel abroad at the same time. Baha'is often experience difficulty in obtaining passports.

Women must obtain the permission of their husband, father, or other living male relative in order to obtain a passport. Married women must receive written permission from their husbands before leaving the country.

The law contains provisions for granting refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government generally cooperates with the UNHCR and other humanitarian organizations in assisting refugees. Although the Government generally provides first asylum, the Government has increased pressure on some refugees to return to their home countries, particularly as the economy has worsened.

The country hosts a large refugee population, mostly Afghans who fled during the Soviet occupation. The Government and the UNHCR estimate that there are approximately 2 million Afghan refugees in the country. Most subsist on itinerant labor, often moving from place to place within the country. Between April and December 2000, the Government and the UNHCR operated a joint program intended to facilitate the repatriation of Afghans who did not have a well-founded fear of persecution. Approximately 133,000 Afghans returned voluntarily with UNHCR assistance, and another 50,000 returned with help from the Government.

According to HRW, economic decline, exacerbated by droughts and floods, led to blaming of Afghans for increasing unemployment and rising crime. The Government accused many Afghans of involvement in drug trafficking. The Government arrested and executed many Afghans (see Sections 1.a. and 1.d.). With the late-year conflict in Afghanistan, many more Afghans attempted to enter the country across the Iranian border, which the Government closed in September. The Government set up several refugee camps just inside Afghanistan to deal with the crisis.

The UNHCR estimates that there were approximately 450,000 to 510,000 Iraqi Kurdish refugees in the country at year's end, of which approximately 83 percent were Shi'a and 17 percent non-Shi'a. An additional 70,000 refugees were Shi'a Arabs. Many of these Iraqi refugees originally were expelled by Iraq at the beginning of the Iran-Iraq war because of their suspected Iranian origin. In numerous instances, both the Iraqi and Iranian Governments dispute their citizenship, rendering many of them, in effect, stateless. Other Iraqi refugees arrived following Iraq's invasion of Kuwait in 1990.

Although the Government claims to host more than 30,000 refugees of other nationalities, including Tajiks, Bosnians, Azeris, Eritreans, Somalis, Bangladeshis, and Pakistanis, it has provided no information about them or allowed the UNHCR or other organizations access to them.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The right of citizens to change their government is restricted significantly. The Supreme Leader, the recognized Head of State, is selected for a life term by the Assembly of Experts. The Assembly of Experts may also remove the Supreme Leader. The Assembly itself is restricted to clerics, who serve an 8-year term and are chosen by popular vote from a list approved by the Government. There is no separation of state and religion, and clerics dominate the Government. The Government represses any attempts to separate state and religion, or to alter the State's existing theocratic foundation. The Government effectively controls the selection of candidates for elections.

The Constitution provides for a Council of Guardians composed of six Islamic clergymen and six lay members who review all laws for consistency with Islamic law and the Constitution. The Council also screens political candidates for ideological, political, and religious suitability. It accepts only candidates who support a theocratic state; clerics who disagree with government policies also have been disqualified.

Regularly scheduled elections are held for the President, members of the Majles, and the Assembly of Experts. Mohammad Khatami, a former Minister of Culture and Islamic Guidance who was impeached in 1992 by the Majles for "liberalism" and "negligence," was reelected President in a landslide, with 77 percent of the vote. The UNSR reported that the Guardian Council significantly limited the number of candidates permitted to run. He noted that the Interior Minister denounced the "unprincipled disqualification" of candidates.

Elections were held in the fall of 1998 for the 86-member Assembly of Experts. The Council of Guardians disqualified numerous candidates, which led to criticism from many observers that the Government improperly predetermined the election results.

Elections were held for the 290-seat Majles in February 2000. Of more than 6,000 candidates, 576 were disqualified before the elections by the Council of Guardians, which represented a substantial decrease from the 44 percent who were disqualified before the 1996 elections. Most of those disqualified were outspoken advocates of political reform, including some of the most prominent supporters of President Khatami. In addition, an Azeri activist was arrested in December 1999, reportedly to prevent him from registering to run in the elections (see Sections 1.d. and 5). However, candidates with a wide range of views were permitted to run. The elections resulted in a landslide victory for moderate and reform candidates, who constitute a large majority in the Majles. In June by-elections were held for Majles seats. The Council of Guardians reportedly disqualified 100 potential candidates, more than one-quarter of those wishing to run. Largely due to the disqualification of reform candidates, conservative candidates or conservatives running as independents won all six seats up for election. Vigorous parliamentary debates take place regarding various issues. However, the Supreme Leader and other conservatives within the Government used constitutional provisions to block much of the early reform legislation passed by the Majles.

HRW reported that during the year, approximately 60 reformist members have been brought to court during the year for a variety of alleged offenses. In the spring, authorities reportedly arrested Fatima Haghighatjoo, for inciting public opinion and insulting the judiciary, and for claiming that the Government tortured and mistreated prisoners. She was the first sitting Majles member to face prosecution for statements made under cover of immunity. Authorities released her on bail immediately after her arrest, but eventually sentenced her to 22 months in prison. In December her sentence was reduced to 17 months; however, at year's end, she had not been imprisoned. In December proreform Parliamentarian Hossein Loqmanian began serving a 13-month sentence for insulting the judiciary. He became the first Majles member to serve a jail sentence. Two other Majles members resigned their seats to protest Loqmanian's imprisonment. According to the New York Times, 4 of the 60 lost their cases by year's end, but only Loqmanian has so far been imprisoned. The cases were a result of the ongoing conflict between reformist Parliamentarians and the hard-line judiciary over precisely what type of speech is protected by parliamentary immunity.

In February 1999, elections for nationwide local councils were held for the first time since the 1979 revolution. Government figures indicated that roughly 280,000 candidates competed for 130,000 council seats across the nation. Women were elected to seats in numerous districts. The Councils do not appear to have been granted the autonomy or authority that would make them effective or meaningful local institutions; doing so would have been viewed as a threat to the control of the central Government.

The percentage of women in government and politics does not correspond to their percentage of the population. They hold 9 of 290 Majles seats. There are no female cabinet members. In 1997 President Khatami appointed Masoumeh Ebtekar as deputy president for environmental protection, she is the first female deputy president since the 1979 Islamic Revolution. Minister of Islamic Culture and Guidance Ayatollah Mohajerani appointed a second woman to a senior post, Azam Nouri, when he chose her in 1997 as his Deputy Minister for Legal and Parliamentary Affairs. President Khatami appointed a woman to serve as Presidential Adviser for Women's Affairs.

Christians, Jews, and Zoroastrians elect deputies to reserved Majles seats. However, the UNSR noted in his September 2000 report frequent assertions that religious minorities, by law and practice, are barred from being elected to a representative body (except to the seats in the Majles reserved for minorities), and from holding senior government or military positions. Religious minorities are allowed to vote, but they may not run for president.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The Government continued to restrict the work of local human rights groups. The Government denies the universality of human rights and has stated that human rights issues should be viewed in the context of a country's "culture and beliefs."

Various professional groups representing writers, journalists, photographers, and others attempted to monitor government restrictions in their field, as well as harassment and intimidation against individual members of their professions. However, their ability to meet, organize, and effect change is curtailed severely by the Government.

International human rights NGO's such as HRW and Amnesty International are not permitted to establish offices in or conduct regular investigative visits to the country. HRW and members of a European judicial monitoring NGO were permitted to send representatives to Shiraz for the trial of 13 Iranian Jews on espionage charges (see Section 2.c.). However, they were not permitted to monitor the trial proceedings.

The ICRC and the UNHCR both operate in the country. However, the Government did not allow the UNSR for Human Rights in Iran to visit the country during the year. The Special Representative last was allowed entry into the country to gather information for his yearly report in 1996. However, he corresponded with government officials during the year and received several replies to his correspondence.

The Islamic Human Rights Commission (IHRC) was established in 1995 under the authority of the head of the judiciary, who sits on its board as an observer. In 1996 the Government established a human rights committee in the Majles. Most observers believe that these bodies lack independence. The UNSR published statistics provided by the IHRC indicating that in the period from March 1998 to March 1999, 1,051 files were opened on the basis of complaints received by the organization. Of those the highest number of complaints were related to the judiciary. Of a total of approximately 3,000 currently active files, an estimated 1,000 were related to women and women's issues.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

In general the Government does not discriminate on the basis of race, disability, language, or social status. The Government discriminates on the basis of religion and sex.

Women

Although spousal abuse and violence against women occurred, statistics regarding such abuse are not available publicly. Abuse in the family is considered a private matter and seldom is discussed publicly. Rape is illegal; however, the law rarely is enforced, and rape is a widespread problem. The Special Representative noted in his September 2000 report that media reporting on the situation of women has diminished, in part due to the closure of the reform-oriented press (see Section 2.a.).

Prostitution is illegal. Information regarding the extent of the problem is not available.

A girls' center in Karaj reportedly was involved in the trafficking of girls (see Section 6.f.).

Women have access to primary and advanced education; however, social and legal constraints limit their professional opportunities. In September 2000, the Majles approved a controversial bill to allow single women to travel abroad for graduate education. The Council of Guardians was considering the legislation at year's end. Women are represented in many fields of the work force, and the Government has not prevented women from entering many traditionally male-dominated fields, including medicine, dentistry, journalism and agriculture. However, many women choose not to work outside the home. According to the International Monetary Fund (IMF), there were 2 million women in the work force, of whom approximately 1.8

million were employed during the year. A 1985 law enacted by the Government instituted 3 months of paid maternity leave, and 2 half-hour periods per day for nursing mothers to feed their babies. Pension benefits for women were established under the same law, which required companies hiring women to provide day-care facilities for young children of female employees.

The State enforces gender segregation in most public spaces, and prohibits women mixing openly with unmarried men or men not related to them. Women must ride in a reserved section on public buses and enter public buildings, universities, and airports through separate entrances. Women are prohibited from attending male sporting events, although this restriction does not appear to be enforced universally. While the enforcement of a conservative Islamic dress codes has varied with the political climate since the death of Ayatollah Khomeini in 1989, what women wear in public is not entirely a matter of personal choice. The authorities harass women if their dress or behavior is considered inappropriate, and women may be sentenced to flogging or imprisonment for such violations. The law prohibits the publication of pictures of uncovered women in the print media, including pictures of foreign women. There are penalties for failure to observe Islamic dress codes at work (see Section 6.a.).

Discrimination against women is reinforced by law through provisions of the Islamic Civil and Penal Codes, in particular those sections dealing with family and property law. Shortly after the 1979 revolution, the Government repealed the Family Protection Law, a hallmark bill adopted in 1967, that gave women increased rights in the home and workplace, and replaced it with a legal system based largely on Shari'a practices. In 1998 the Majles passed legislation that mandated segregation of the sexes in the provision of medical care. The bill provided for women to be treated only by female physicians and men by male physicians and raised questions about the quality of care that women could receive under such a regime, considering the imbalance between the number of trained and licensed male and female physicians and specialists.

In October 2000, the Parliament passed a bill to raise the legal age of marriage for women from 9 to 15. However, the Council of Guardians rejected the bill in November 2000 as contrary to Islamic law. Nonetheless, even under the law, marriage at the minimum age is rare. All women, no matter the age, must have the permission of their father or a living male relative in order to marry. The law allows for the practice of Siqeh, or temporary marriage, a Shi'a custom in which a woman or a girl may become the wife of a married or single Muslim male after a simple and brief religious ceremony. The Siqeh marriage may last for a night or as little as 30 minutes. The bond is not recorded on identification documents, and, according to Islamic law, men may have as many Siqeh wives as they wish. Such wives are not granted rights associated with traditional marriage.

The Penal Code includes provisions that mandate the stoning of women and men convicted of adultery (see Sections 1.a and 1.c.). Women have the right to divorce, and the grounds on which a woman may seek a divorce include proving that her husband is addicted to drugs or that he has not supported her for extended periods. However, a husband is not required to cite a reason for divorcing his wife. In 1986 the Government issued a 12-point "contract" to serve as a model for marriage and divorce, which limits the privileges accorded to men by custom and traditional interpretations of Islamic law. The model contract also recognized a divorced woman's right to a share in the property that couples acquire during their marriage and to increased alimony rights. Women who remarry are forced to give up to the child's father custody of children from earlier marriages. However, the law granted custody of minor children to the mother in certain divorce cases in which the father is proven unfit to care for the child, such as in cases in which the father suffers from drug addiction or has a criminal record. Muslim women may not marry non-Muslim men. The testimony of a woman is worth only half that of a man in court (see Section 1.e.). A married woman must obtain the written consent of her husband before traveling outside the country (see Section 2.d.).

In his August report, the UNSR reported that poverty severely impacts women and that there are about one million single-mother families, and that 29 percent of the families below the poverty line are single-mother families. In addition, 70 percent of the single mothers in rural areas are illiterate.

Children

Most children have access to free education through the 12th grade (it is compulsory to age 11), and to some form of health care.

A girls' center in Karaj reportedly was involved in the trafficking of girls (see Section 6.f.).

There is no known pattern of child abuse.

Persons with Disabilities

There is no available information regarding whether the Government has legislated or otherwise mandated accessibility for persons with disabilities, or whether discrimination against persons with disabilities is prohibited. However, the Cable News Network reported in 1996 on the harsh conditions in an institution for children with mental retardation who had been abandoned by their parents. Film clips showed children tied or chained to their beds, in filthy conditions, and without appropriate care. It is not known to what extent this represents the typical treatment of persons with disabilities.

Religious Minorities

Members of all religious minorities, including Christians, Jews, Zoroastrians, and Baha'is, suffer varying degrees of officially sanctioned discrimination, particularly in the areas of employment, education, and housing. Applicants for public-sector employment are screened for their adherence to Islam. The law stipulates penalties for government workers who do not observe "Islam's principles and rules." Article 144 of the Constitution states that "the Army of the Islamic Republic of Iran must be an Islamic army," which is "committed to an Islamic ideology," and must "recruit into its service individuals who have faith in the objectives of the Islamic Revolution and are devoted to the cause of achieving its goals." Apostasy, or conversion from Islam to another religion, is punishable by death. Muslims who convert to Christianity also suffer discrimination.

University applicants are required to pass an examination in Islamic theology. Although public-school students receive instruction in Islam, this requirement limits the access of most religious minorities to higher education.

The legal system discriminates against minorities, awarding lower compensation awards in injury and death lawsuits and imposing heavier punishments than on Muslims.

The Government's anti-Israel policies and the trial of the 13 Jews in 2000, along with the perception that Jews support Zionism and the State of Israel, create a threatening atmosphere for the Jewish community (see Section 2.c.). Jews limit their contact with Israel and openly do not express support for Israel out of fear of reprisal. Recent anti-American and anti-Israeli demonstrations have included the denunciation of "Jews," as opposed to the past practice of denouncing only "Israel" and "Zionism," adding to the threatening atmosphere for the community.

In 1993 the UNSR reported the existence of a government policy directive to block the progress of Baha'is (see Section 2.c.).

Properties belonging to the Baha'i community as a whole, such as places of worship and graveyards, were confiscated by the Government in the years after the 1979 revolution and, in some cases, defiled. Baha'is are prevented from enrolling in universities. However, other Government restrictions have eased; Baha'is currently may obtain ration booklets and send their children to public elementary and secondary schools. Thousands of Baha'is who were dismissed from government jobs in the early 1980's receive no unemployment benefits and have been required to repay the Government for salaries or pensions received from the first day of employment. Those unable to do so face prison sentences (see Sections 1.d. and 2.c.).

Sunni Muslims encounter religious discrimination at the local level, and there were reports of discrimination against practitioners of the Sufi tradition during the year.

National/Racial/Ethnic Minorities

The Kurds seek greater autonomy from the central Government and continue to suffer from government discrimination. The Kurds' status as Sunni Muslims is an aggravating factor in their relations with the Shi'a-dominated government. Such tensions predate the revolution. Kurds often are suspected by government authorities of harboring separatist or foreign

sympathies. These suspicions have led to sporadic outbreaks of fighting between government forces and Kurdish groups.

The UNSR reported that in December 2000, police forcefully disrupted a peaceful demonstration by Kurdish students at the University of Tehran was broken up by the police, with accompanying arrests and injuries.

According to the UNSR, President Khatami, who won an overwhelming percentage of the Kurdish vote in the recent Presidential election, has made several conciliatory gestures to the Kurdish population. He appointed the first Kurd to hold the position of Governor of Kurdistan, and the Governor appears to be facilitating a "process of reconciliation." The UNSR reports that the Government appears to be encouraging Kurdish cultural expression, with the Government subsidizing some Kurdish language classes. The number of Kurdish publications is on the increase, and there is also the prospect of limited Kurdish TV broadcasting.

Azeris are well integrated into the Government and society, but complain of ethnic and linguistic discrimination. The Government traditionally has viewed Azeri nationalism as threatening, particularly since the dissolution of the Soviet Union and the creation of an independent Azerbaijan. Mohammed Chehrangi, an advocate for the cultural rights of Azeris, was arrested in December 1999. Azeri groups maintain that the arrest was made to prevent his registration as a candidate for the February parliamentary elections (see Sections 1.d. and 3).

Section 6 Worker Rights

a. The Right of Association

The Labor Code grants workers the right to establish unions; however, the Government does not allow independent unions to exist. A national organization known as the Worker's House, founded in 1982, is the sole authorized national labor organization. It serves primarily as a conduit for the Government to exert control over workers. The leadership of the Worker's House coordinates activities with Islamic labor councils, which are made up of representatives of the workers and one representative of management in industrial, agricultural, and service organizations of more than 35 employees. These councils also function as instruments of government control, although they frequently have been able to block layoffs and dismissals.

The Labor Code allows employers and employees to establish guilds. The guilds issue vocational licenses and help members find jobs.

The Government does not tolerate any strike deemed to be at odds with its economic and labor policies. The law prohibits strikes by government workers. It also prohibits government workers from having contacts with foreigners and stipulates penalties for failure to observe Islamic dress codes and principles at work. Nevertheless, strikes occurred, apparently in increasing numbers as the economy has worsened. A European-based labor organization that follows Iranian labor issues reported 181 protests and strikes by workers in the period from March 1998 to March 1999. These reportedly included strikes and protests by oil, textile, electrical manufacturing, and metal workers, and by the unemployed.

Newspapers in 1999 reported an "unauthorized rally" by thousands of workers over the Government's labor policies and the poor economy. Instances of late or partial pay for government workers reportedly are common.

There are no known affiliations with international labor organizations.

b. The Right to Organize and Bargain Collectively

Workers do not have the right to organize independently and negotiate collective bargaining agreements. No information is available regarding mechanisms used to set wages.

It is not known whether labor legislation and practice in the export processing zones differ from the law and practice in the rest of the country.

c. Prohibition of Forced or Compulsory Labor

The Penal Code provides that the Government may require any person who does not have work to take suitable employment; however, this does not appear to be enforced regularly. This provision has been criticized frequently by the International Labor Organization (ILO) as contravening ILO Convention 29 on forced labor. The law prohibits forced and bonded labor by children; however, they are not enforced adequately, and such labor by children is a serious problem.

d. Status of Child Labor Practices and Minimum Age for

Employment

The Labor Law prohibits employment of minors under 15 years of age and places restrictions on the employment of minors under age 18; however, laws pertaining to child labor are not enforced adequately and child labor is a serious problem. The law permits children to work in agriculture, domestic service, and some small businesses. By law women and minors may not be employed in hard labor or, in general, night work. Information regarding the extent to which these regulations are enforced is not available. The law prohibits forced and bonded labor by children; however, it is a serious problem (see Section 6.c.).

e. Acceptable Conditions of Work

The Labor Code empowers the Supreme Labor Council to establish annual minimum wage levels for each industrial sector and region. It is not known if the minimum wages are adjusted annually or enforced. The Labor Code stipulates that the minimum wage should be sufficient to meet the living expenses of a family and should take inflation into account. Under the poor economic conditions, many middle-class citizens must work two or even three jobs to support their families. The daily minimum wage was raised in March 1997 to \$2.80 (8,500 rials). This wage is not sufficient to provide a decent standard of living for a worker and family. Information regarding the percentage of the working population covered by minimum wage legislation is not available.

The Labor Code establishes a maximum 6-day, 48-hour workweek, with 1 weekly rest day, normally Fridays, and at least 12 days of paid annual leave and several paid public holidays.

According to the Labor Code, a Supreme Safety Council, chaired by the Labor Minister or his representative, is responsible for promoting workplace safety and health. The Council reportedly has issued 28 safety directives, and oversees the activities of 3,000 safety committees established in enterprises employing more than 10 persons. Labor organizations outside the country allege that hazardous work environments are common in Iran, and result in thousands of worker deaths per year. It is not known how well the Ministry's inspectors enforce regulations. It is not known whether workers may remove themselves from hazardous situations without risking the loss of employment.

f. Trafficking in Persons

The law does not prohibit specifically trafficking in persons, and persons reportedly were trafficked to, through, and from the country during the year. The UNSR noted in his August report that "a girl's shelter in Karaj, the Jasmine Center, was closed down after an investigation reportedly revealed that it had become involved in the trafficking of girls. The press focused on the high-level connections of the operators of the Center. The authorities subsequently charged a judge of the Revolutionary Court in the affair."

There were reports that women were trafficked to the United Arab Emirates (UAE) for the purpose of forced prostitution. There also were reports that young boys were trafficked through the country to be camel jockeys in the UAE.

There reportedly were 3 trials during the year related to the trafficking of persons; however, there was no information regarding the details of the trials or their outcomes.

¹The United States does not have an embassy in Iran. This report draws heavily on non-U.S. Government sources.

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